法學英文主題整理：訴訟程序法（Litigation & Procedure）

> 涵蓋 104-114 年司律一試法學英文考古題，依主題分類彙整詞彙、中英對照與考古題原文。

一、核心詞彙與中英對照

英文	中文	出題年度
statute of limitations	消滅時效	106、108
service of process	送達	105、107
injunction	假處分；禁制令	105
dismiss	駁回	104
jurisdiction	管轄權	106
burden of proof	舉證責任	113
res judicata	既判力	110
exclusionary rule	證據排除法則	110
confession	自白	110
circumstantial evidence	間接證據	110
search and seizure	搜索與扣押	109、113
cross examination	交互詰問	112
confrontation	對質詰問權	109
right to remain silent	緘默權	107
self-incrimination	自證己罪	109
equality of arms	武器平等原則	107

recuse	法官迴避	108
moot	無實益（不具審判利益）	108
amicus curiae / amicus briefs	法庭之友意見書	110
concurring opinion	協同意見書	111、112
dissenting opinion	不同意見書	111
directed verdict	指示判決（逕為判決）	111
summary judgment	簡易判決	107
judgment notwithstanding the verdict	逕為判決（推翻陪審團）	107
victim impact statements	被害人影響陳述	111
alternative dispute resolution	替代爭端解決	114
constitutional complaint	裁判憲法審查	113
appellant	上訴人	104
bail	保釋金	108
parole	假釋	104
private prosecution	自訴	104
court clerk	法院書記官	106
power of attorney	委任狀	114
spoliation of evidence	證據湮滅	104

二、重要例句與考古題解析

1. 消滅時效（Statute of Limitations）

106 年第 57 題

Jonathan negligently breaks two valuable vases of Evelyn in front of her. Three years later, Evelyn asks Jonathan to compensate her for her loss for the first time. Under Article 197 of R.O.C. Civil Code, Jonathan may assert ___ defense and refuse to pay.

(A) statute of limitations (B) statute of expiration

(C) expiration of effectiveness (D) expiration of time

→ 答案：**(A)**

108 年第 68 題

To make sure that a plaintiff with a valid cause of action will timely exercise his (or her) right, the law imposes time limits on a cause of action. If a plaintiff fails to file a complaint within the time limits, the defendant may plead such failure as a defense. Such time limits are called ___.

(A) Temporal conditions (B) Statute of limitations

(C) Statute of countdowns (D) Durational conditions

→ 答案：**(B)**

考點提示：

- **statute of limitations**（消滅時效）出題 2 次。106 年搭配民法第 197 條（侵權行為 2 年時效），108 年考定義。
- 干擾選項皆為非標準法律用語，惟注意 (A) Temporal conditions 看似正式但非法律術語。

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2. 送達（Service of Process）

105 年第 62 題

Berry sues Jerry. However, the complaint has been sent to a wrong address by a negligent postman. Jerry does not appear in court and the judge enters a judgment in favor of Berry. Jerry may appeal because of insufficient ___.

(A) service of process (B) service of delivery

(C) submission (D) subpoena

→ 答案：**(A)**

107 年第 69 題

To ensure all parties involved in civil proceedings are fairly and timely informed, a set of rules is created to determine how to properly deliver and exchange court papers and documents to and among the parties. Such rules are rules of ___.

(A) circulation (B) communication

(C) notification (D) service

→ 答案：**(D)**

考點提示：

- **service of process**（送達）：確保訴訟文書合法送達當事人的程序。送達瑕疵可作為上訴理由。
- 107 年考固定搭配 "rules of service"。

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3. 假處分（Injunction）

105 年第 65 題

According to Article 538 of the Code of Civil Procedure, where necessary for the purpose of preventing material harm, a party may apply for ___ to maintain a temporary status quo with regard to the legal relation in dispute.

(A) an injunction (B) a decree

(C) a judgment (D) a verdict

→ 答案：**(A)**

考點提示：

- **injunction**（假處分/禁制令）：為防止重大損害，維持爭議法律關係之暫時狀態。民訴第 538 條。
- 與 decree（命令）、judgment（判決）、verdict（裁決/陪審團判決）之區別。

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4. 管轄（Jurisdiction）

106 年第 68 題

A resides in Taipei City, and M resides in Kaohsiung City. A and M jointly own and operate a private moving company, and do business in Taipei City. Knowing that M desired to get out of the business, A offered to purchase M's moving tools and truck. M accepted but later changed his mind and started up a new business in Kaohsiung City. If there is a contract between A and M, which district court may Plaintiff A file a lawsuit against Defendant M pursuant to Article 12 of the Code of Civil Procedure?

(A) Where A resides. (B) Where M resides.

(C) Where either A or M resides. (D) Whichever district A and M agreed to perform the contract.

→ 答案：**(D)**

考點提示：

- 民訴第 12 條：因契約涉訟者，得由**債務履行地**之法院管轄。(D) 約定履行地即為管轄法院。
- (B) 被告住所地為普通管轄（§1），但本題問的是特別管轄。

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5. 舉證責任（Burden of Proof）

113 年第 70 題

In a breach of contract case, which statement concerning burden of proof is INCORRECT pursuant to the Code of Civil Procedure?

(A) The plaintiff bears the burden of proof to show that there is a contract existed between the parties.

(B) The defendant bears the burden of proof to show that the contract has been rescinded when he or she claims so.

(C) The plaintiff bears the burden of proof to show that the statute of limitations has not run out.

(D) The defendant bears the burden of proof to show that there is an arbitration clause in the contract when he or she claims so.

→ 答案：**(C)**

考點提示：

- 舉證責任分配原則：**主張權利存在者** 負舉證責任，**主張權利消滅/障礙者** 負舉證責任。
- (C) 錯誤：消滅時效為**被告之抗辯**事由，應由被告舉證，非原告。
- (B)(D) 正確：解除契約、仲裁條款均為被告之抗辯，由被告舉證。

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6. 既判力（Res Judicata）

110 年第 70 題

___ is a specific doctrine that precludes re-litigation of claims and issues arising from the same cause of action between the same parties and their privies after a final judgment on the merits by a competent tribunal or after some other final determination having the same effect.

(A) Counter-claim (B) Cross-claim

(C) Respondeat Superior (D) Res judicata

→ 答案：**(D)**

考點提示：

- **res judicata**（既判力）：拉丁文，確定判決對同一當事人、同一訴訟標的具有拘束力，禁止再訴。
- (C) Respondeat Superior（僱用人責任原則）為侵權法概念，與程序法無關。

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7. 證據法則（Evidence Rules）

110 年第 62 題

___ prescribes that all evidence obtained directly by illegal searches and seizures shall be excluded and is inadmissible at trial.

(A) Exclusionary rule (B) Fruit of poisonous tree doctrine

(C) Equal protection principle (D) Proportionality

→ 答案：**(A)**

110 年第 63 題

According to Article 156(2) of the Code of Criminal Procedure, a conviction cannot be solely based on the ___ of the accused.

(A) confession (B) allegation

(C) objection (D) accusation

→ 答案：**(A)**

110 年第 64 題

"___ " refers to evidence that is applied to the principal fact, indirectly, or through the medium of other facts, by establishing certain circumstances or minor facts, already described as evidentiary.

(A) Direct evidence (B) Circumstantial evidence

(C) Character evidence (D) Exculpatory evidence

→ 答案：**(B)**

考點提示：

- 110 年一次考三道證據法題，為最高頻年度。
- **exclusionary rule**（證據排除法則）：違法搜索取得之證據不得作為審判證據。注意與 fruit of poisonous tree doctrine（毒樹果實理論）之區別：後者涵蓋衍生證據。
- **confession**（自白）：刑訴§156(2)，自白不得作為有罪判決之唯一根據。
- **circumstantial evidence**（間接證據）：透過次要事實間接證明主要事實。

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8. 搜索與扣押（Search and Seizure）

113 年第 65 題

Which of the following statements regarding search and seizure is correct?
(A) A search warrant shall be issued on the basis of reasonable suspicion.
(B) A seizure cannot be used for the purpose of confiscation.
(C) A search warrant should be implemented by first issuing a subpoena duces tecum, if the subject does not comply with the subpoena, then a search warrant will be executed.
(D) A search warrant shall particularly specify the places to be searched and the items or effects to be seized.
→ 答案：**(D)**

考點提示：

- 搜索票的特定性要求：必須**明確載明**搜索場所及應扣押之物品。
- (A) 錯誤：搜索票應基於 probable cause（相當理由），而非僅 reasonable suspicion（合理懷疑）。
- (C) 錯誤：搜索票不以先發 subpoena（傳票）為前提。

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9. 交互詰問與對質（Cross Examination & Confrontation）

112 年第 63 題

Which of the following statement about cross examination is INCORRECT under Taiwan Criminal Procedure Code?

(A) Leading questions are not permitted on cross examination.

(B) The scope of cross examination shall be limited to the matters or its related matter revealed in direct examination.

(C) Leading questions may be asked in cross examination if necessary.

(D) Matters in supporting of new allegation by the cross-examiner may be brought out in cross examination with the court's permission.

→ 答案：**(A)**

109 年第 64 題

The right of ___ is supposed to guarantee the accused the right to know his or her accuser.

(A) privacy (B) confrontation

(C) jury trial (D) counsel

→ 答案：**(B)**

考點提示：

- **cross examination**（交互詰問）：(A) 為錯誤選項 — 交互詰問**可以**使用誘導詢問（leading questions）。
- **confrontation**（對質詰問權）：保障被告有權知道並面對控訴者。

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10. 緘默權與自證己罪（Right to Remain Silent & Self-Incrimination）

107 年第 65 題

The warning of the ___ must be accompanied by the explanation that anything said can and will be used against the individual in court. This warning is needed in order to make him aware not only of the privilege, but also of the consequences of forgoing it.

(A) right to have counsel present (B) right to object

(C) right to trial by jury (D) right to remain silent

→ 答案：**(D)**

109 年第 66 題

The act of implicating oneself in a crime or exposing oneself to criminal prosecution is called ___.

(A) self-incrimination (B) self-governance

(C) self-determination (D) self-discipline

→ 答案：**(A)**

考點提示：

- 107 年考 Miranda warning 相關概念：告知「所說的話可能在法庭上被用作不利於你的證據」= **right to remain silent**（緘默權）。
- **self-incrimination**（自證己罪）：不自證己罪特權（privilege against self-incrimination）為刑事被告基本權利。

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11. 辯護權（Right to Counsel）

107 年第 64 題

The right to have the assistance of counsel for his or her defense is mainly based upon the theory of ___.

(A) equality of arms (B) freedom of speech

(C) warrant requirement (D) double jeopardy

→ 答案：**(A)**

考點提示：

- **equality of arms**（武器平等原則）：被告享有辯護人協助之權利，使控辯雙方力量平衡。
- **double jeopardy**（一事不再理）：同一犯罪不得重複追訴，為不同概念。

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12. 法官迴避與訴訟無實益（Recuse & Moot）

108 年第 67 題

When a judge has a financial interest in the case assigned to him (or her), is related to a party, or there is a strong possibility that the judge's decision will be biased, any party may request such a judge to ___ himself (or herself) from the case.

(A) excuse (B) recuse

(C) accuse (D) deduce

→ 答案：**(B)**

108 年第 66 題

When a judicial decision cannot have any practical legal effect because the issues that generated it either have been resolved or disappeared, it is said that the case has become ___.

(A) removable (B) moot

(C) undecided (D) reserved

→ 答案：**(B)**

考點提示：

- **recuse**（迴避）：法官有利害關係或偏見可能時應自行迴避。注意 (A) excuse（藉口）、(C) accuse（控訴）為詞形干擾。
- **moot**（訴訟無實益）：爭議已消滅，判決無實際法律效果。

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13. 法庭之友（Amicus Curiae）

110 年第 66 題

A person or group who is not a party to an action, but has a strong interest in the matter, will petition the court for permission to submit a brief in the action with the intent of influencing the court's decision. Such briefs are called "___ briefs."

(A) petitioner's (B) amicus

(C) respondent's (D) appellate

→ 答案：**(B)**

考點提示：

- **amicus curiae**（法庭之友）：拉丁文，非訴訟當事人但對案件有強烈利益者，經法院許可提出 brief（書狀）。
- 台灣憲法訴訟法已引入法庭之友制度。

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14. 司法意見書（Judicial Opinions）

111 年第 59 題

If a Supreme Court Justice agrees with the outcome of the case, but not the majority's rationale for it, that Justice may write a ___ opinion.

(A) dissenting (B) majority

(C) plurality (D) concurring

→ 答案：**(D)**

112 年第 70 題

A Justice who agrees with the holding of the decision but is not fully satisfied with its reasoning may issue a ___ opinion.

(A) dissenting (B) minority

(C) concurring (D) differential

→ 答案：**(C)**

考點提示：

- **concurring opinion**（協同意見）出題 2 次：同意結論但理由不同。
- **dissenting opinion**（不同意見）：不同意結論。
- **plurality opinion**（相對多數意見）：無過半多數同意之最多人意見。

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15. 判決類型（Types of Judgment）

111 年第 70 題

A ___ is a ruling entered by a trial judge after determining that there is no legally sufficient evidentiary basis for a reasonable jury to reach a different conclusion.
(A) summary judgement (B) directed verdict
(C) judgement of dismissal (D) judgement notwithstanding the verdict
→ 答案：**(B)**

107 年第 70 題

In a civil case, which of the following pairings of action and actor is incorrect?
(A) summary judgement----judge (B) judgment notwithstanding the verdict-----jury
(C) complaint----plaintiff (D) answer----defendant
→ 答案：**(B)**

考點提示：

- **directed verdict**（指示判決）：審判法官認為證據不足以支持合理陪審團做不同判斷時逕為判決。
- **summary judgment**（簡易判決）：由法官作成，非陪審團。
- **judgment notwithstanding the verdict (JNOV)**：亦由**法官**作成（推翻陪審團判決），(B) 配對 jury 為錯誤。

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16. 刑事程序與量刑（Criminal Procedure & Sentencing）

106 年第 64 題

With regard to interrogating an accused, which of the following is incorrect under R.O.C. Code of Criminal Procedure?

(A) The accused shall be given an opportunity to explain as to the offense of which he/she is suspected.

(B) The accused shall be interrogated in an earnest manner; any improper means involving violence, threat, inducement, fraud, exhausting interrogation or other improper means shall not be used.

(C) A request by the accused for a confrontation shall not be denied, unless it is apparently unnecessary.

(D) The whole proceeding of interrogating the accused shall be consecutively recorded in audio, and also, if necessary, in video with no exceptions.

→ 答案：**(D)**

114 年第 62 題

Which of the following statements regarding sentencing in Taiwan's Code of Criminal Law is correct?

(A) Both retribution and deterrence are the goals of penalties in Taiwan's Code of Criminal Law.

(B) Pursuant to Taiwan's Constitutional Court Ruling, the recidivist must be punished with an enhanced penalty, which might be up to one and a half times the penalty of the offense committed.

(C) Imposing a sentence shall not consider the circumstantial evidence with regard to the defendant's character, the attitudes after the crime, and the life circumstances.

(D) A probation cannot be imposed with additional condition(s).

→ 答案：**(A)**

考點提示：

- 106 年考訊問被告：(D) 訊問「全程」錄音錄影並非毫無例外（no exceptions 為錯誤），刑訴§100-1 但書有例外規定。
- 114 年考量刑：台灣刑法兼採**應報**（retribution）與**嚇阻**（deterrence）目的。(B) 累犯加重經大法官宣告須個案裁量。

17. 替代爭端解決（Alternative Dispute Resolution）

> **114 年第 64 題**
> In a civil case, any method of resolving disputes without litigation is called ___, including arbitration and mediation.
> (A) non-litigation adjudication (B) advanced dispute replacement
> (C) extrajudicial settlement (D) alternative dispute resolution
> → 答案：**(D)**

> **考點提示：**
>
> - **alternative dispute resolution (ADR)**（替代爭端解決）：包含 arbitration（仲裁）和 mediation（調解）等非訴訟方式。
> - 固定用語，不可替換為其他選項中的非標準說法。

18. 被害人影響陳述（Victim Impact Statements）

> **111 年第 64 題**
> Adoption of criminal statutes requiring consideration of ___ impact statements during the sentencing stage aims to provide various information about the crime with the court.
> (A) victory (B) victim
> (C) vicarious (D) vice
> → 答案：**(B)**

> **考點提示：**
>
> - **victim impact statements**（被害人影響陳述）：被害人於量刑階段向法院陳述犯罪對其生活之影響，供法官量刑參考。

三、尚未獨立成段但曾出題之重要主題

主題	年度/題號	重點
駁回（dismiss）	104 年第 65 題	未繳訴訟費用，法院得駁回（民訴§249）
證據湮滅（spoliation of evidence）	104 年第 66 題	故意隱匿證據以阻礙對造使用
不公開審理（privacy in proceedings）	104 年第 67 題	涉及隱私，法院得不公開審理（民訴§195-1）
公開法庭（public court）	105 年第 64 題	言論自由非不公開審理事由
自訴（private prosecution）	104 年第 68 題	被害人得提起自訴（刑訴§319）
上訴人（appellant）	104 年第 69 題	提起上訴之人
假釋（parole）	104 年第 70 題	服刑逾半得假釋（刑法§77）
書記官（court clerk）	106 年第 70 題	負責製作記錄、送達文書之人員
刑事證據法則	106 年第 66 題	證人未具結之證言不得作為證據
訟務總長（Solicitor General）	107 年第 68 題	代表美國政府在最高法院辯論之官員
保釋金（bail）	108 年第 62 題	以不正當方法訂定之保釋金違憲
宣告違憲（struck down）	111 年第 66 題	法院宣告法律違憲 = struck down
遵循先例（stare decisis / acceptance）	111 年第 68 題	變更先例之裁判用語
憲法訴訟（constitutional complaint）	113 年第 68 題	裁判憲法審查，憲法訴訟法之用語
委任狀（power of attorney）	114 年第 65 題	委任代理出庭之授權文件
量刑/比例原則	114 年第 67 題	量刑應符合比例原則（proportionality）

四、一試重點提示

1. **statute of limitations**（消滅時效）：出題 2 次（106、108），高頻考點。
2. **service of process**（送達）：出題 2 次（105、107），送達瑕疵可影響判決效力。
3. **證據三連題**（110 年）：exclusionary rule（排除法則）、confession（自白）、circumstantial evidence（間接證據）一次考三題，須整體掌握。
4. **concurring opinion**（協同意見）：出題 2 次（111、112），固定用語。
5. **cross examination**（交互詰問）：交互詰問**可以**使用誘導詢問，為常見陷阱。
6. **刑事被告權利**：right to remain silent（緘默權）、confrontation（對質詰問權）、self-incrimination（自證己罪）、equality of arms（武器平等）均曾出題。
7. **res judicata**（既判力）：拉丁文術語，與民訴既判力概念對應。
8. **amicus curiae**（法庭之友）：拉丁文術語，憲法訴訟法已引入。
9. **判決類型區辨**：directed verdict / summary judgment / JNOV 均由**法官**作成，非陪審團。
10. **ADR / constitutional complaint**：近年新出題型，注意固定用語。